
NEWS

South Bay Judge Rules San José's Flock Cameras Don't Invade Privacy

A judge dismissed a lawsuit against San José over its massive network of automated license plate readers.

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By Joseph Geha









A Flock Safety license plate recognition camera is seen near the intersection of Marine Street and Arapahoe Avenue in Boulder on March 5, 2026. (Matthew Jonas/MediaNews Group/Boulder Daily Camera via Getty Images)

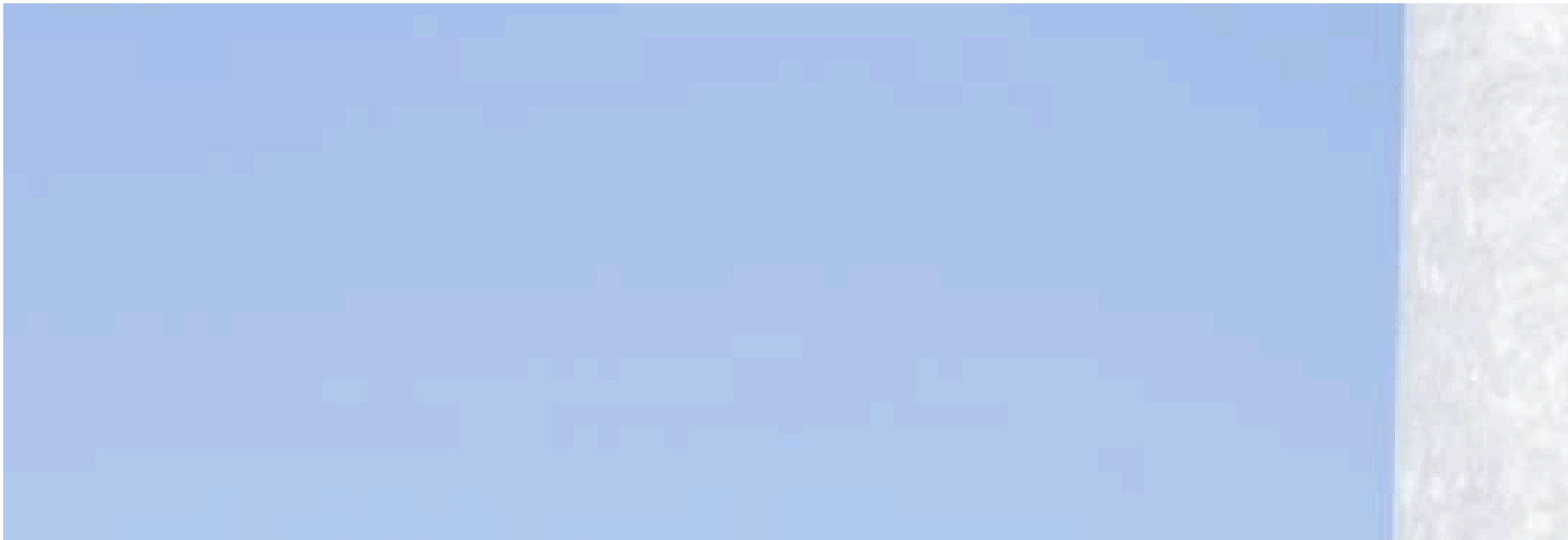
A Santa Clara County judge has dismissed a [lawsuit](#) challenging San José's massive license plate reader network, dealing a major blow to advocates for privacy and civil liberties.

In a ruling on Friday, Judge Jeffrey El-Hajj said that the city's arsenal of [nearly 500](#) Flock automated license plate readers, which scan hundreds of millions of plates every year, does not violate people's right to

El-Hajj's ruling leans on a decision from a state appeals court in 2024 that said a set of traffic surveillance cameras in San Diego was not an invasion of privacy. The decision this month sides with San José, whi







A Flock camera monitors the intersection at McKee Road and North White Road in San José on April 2, 2026. *(Martin do Nascimento/KQED)*

“We are pleased with the court’s decision as it validates that the city’s deployment and oversight of its ALPR system meets required constitutional privacy standards,” City Attorney Susana Alcala Wood said in . In November 2025, the American Civil Liberties Union of Northern California and the Electronic Frontier Foundation filed the lawsuit on behalf of the California chapter of the Council on American Islamic Relations. The lawsuit said the city’s nearly 500 license plate readers and its searchable AI-powered database that stores plate and car information for a month amount to a “deeply invasive” mass surveillance system that ‘

When the lawsuit was first filed, San José was keeping that information for a year.

Andrew Crocker, the surveillance litigation director for the EFF, said the group is disappointed in the ruling and that the plaintiffs may file an appeal.

“We’re considering all our options about how to proceed in this case, but we think that the tide is turning against ALPRs both in the courts and in just public sentiment around the country,” Crocker said Monday



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Crocker said the question of how large, connected networks of ALPRs like the one in San José fare against the rights of residents under the U.S. and state constitutions “is a cutting-edge issue” that courts are wrestling with. “You can see courts around the country, including a federal district court in [Oklahoma](#), coming to a different conclusion and saying that ALPRs are a violation of the Fourth Amendment because they invade people’s privacy.” The court decision in Santa Clara County comes only weeks after officials revealed that a San José police officer was fired for abusing the city’s license plate reader network to help his family member track the

The city has also reduced the amount of time it retains license plate and car information from one year to 30 days, and has barred the cameras from recording outside places of worship, reproductive health clinic

Crocker said the restrictions don't go nearly far enough.

"Clearly these cities are recognizing there's a problem, and I don't think that restrictions like this are going to solve that problem. Really any use of ALPRs is harmful, and the only way to stop the risk of this ki

"Short of that, they could get a warrant, they could go before a court and present probable cause to run these searches, which is what we're seeking in this lawsuit," he said. "San José has not done that. San Frar

Alcala Wood said the city's use of the readers seeks "to balance the use of a significant crime detection and community safety tool with stringent protection of individual privacy rights."







A Flock Safety worker holds up a new automated license plate reader that was being installed in East San José on April 23, 2024. (Joseph Geha/KQED)

San José is also still facing a [similar lawsuit](#) against the license plate reader network in federal court, where three residents have sued over privacy rights under the Fourth Amendment of the U.S. Constitution. T
After media reports revealed that federal agencies like Customs and Border Protection and Immigration and Customs Enforcement were able to access data from vast local Flock camera networks across the cou

Other cities, like Oakland and San Francisco, have doubled down on their contracts, lauding the technology's benefits to aid in investigations.

While Flock is the largest single purveyor of such cameras and software, Crocker said many cities and counties also maintain large networks of license plate readers from other vendors, and it's those types of m

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